

TENTATIVE RULING(S) FOR June 2, 2026

Department S37 – Judge Winston Keh

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If you (or both parties) wish to submit on the Tentative, notify the other party and call the department by 4:00 pm the day before and your appearance may be excused unless the Court orders you to appear.

You must appear at the hearing if you are so directed by the court in the tentative ruling. Be prepared to address those issues set forth by the court in its ruling.

UNLESS OTHERWISE NOTED, THE PREVAILING PARTY IS TO GIVE NOTICE OF THE RULING.

CIVSB2402541

Alarcon v. GM

TENTATIVE RULING(S):

Before the Court is Defendant General Motors' ("GM") Motion for Summary or Summary Adjudication against Plaintiff Anthony Alarcon's ("Alarcon" or "Plaintiff") First Amended Complaint ("FAC"). The FAC asserts claims for (1) breach of implied warranty under the Song-Beverly Act, (2) breach of express warranty under the Song-Beverly Act, (3) breach of express warranty under the Commercial Code, (4) violation of the Magnuson-Moss Act, and (5) violation of the Consumer Legal Remedies Act (CLRA). However, on May 14, 2026, Alarcon dismissed the first two causes of action.

Here GM seeks summary judgment, or in the alternative summary adjudication, on the grounds that the first two causes of action are not viable because the vehicle was "used"; the third cause

of action fails because GM was not the seller of the vehicle; the fourth cause of action fails because it is dependent upon a viable state law claim, which does not exist; and the fifth cause of action fails because Plaintiff cannot establish the requisite transactional relationship to support a claim under the CLRA. As noted above, however, the first two causes of action have been dismissed, rendering the motion partially moot.

The motion is supported by a separate statement of fact; declarations from Kyle Roybal (defense counsel) and Bryan Jensen (GM's Litigation Support Manager); the retail instalment sale contract (RISC) for Alarcon's purchase of the vehicle; GM's "View Vehicle Delivery Information" report; the Limited Warranty and Owner Assistance Information booklet; and a "View Vehicle Summary" report for the vehicle.

The motion is opposed by Alarcon, who notes the dismissal of the first two causes of action, but who also contends that GM has not met its initial burden as to the remaining claims and that triable issues of material fact otherwise exist. The opposition is supported by an opposing separate statement of fact; declarations from Alarcon and attorney David Barry; three repair orders (dated August 9, August 14, and October 16, 2023); documents GM produced in response to requests for production of documents; portions of GM's Global Warranty History Report; and portions of the Limited Warranty and Owner Assistance Information booklet. Alarcon also objects to portions of the Jensen declaration, the View Vehicle Delivery Information report, the Limited Warranty and Owner Assistance Information booklet, and the View Vehicle Summary report.

Merits of GM's Motion

The Third Cause of Action under the Commercial Code

Under Commercial Code section 2313, an express warranty is created by the seller based upon "(a) Any affirmation of fact or promise made by the seller to the buyer which relates to the goods and becomes part of the basis of the bargain creates an express warranty that the goods shall conform to the affirmation or promise. (b) Any description of the goods which is made part of the basis of the bargain creates an express warranty that the goods shall conform

to the description. (c) Any sample or model which is made part of the basis of the bargain creates an express warranty that the whole of the goods shall conform to the sample or model.”

As the statute indicates, it applies to the “seller,” but based upon the RISC submitted in this case GM was not the seller. However, caselaw instructs that although the purchaser of a used vehicle may not be entitled to the refund-or-replace remedy for new vehicles under the Song-Beverly Act, that “conclusion doesn’t mean that plaintiffs or others in their position have no legal recourse against a manufacturer who fails to conform a vehicle to an applicable, unexpired express warranty. Though not entitled to the Act’s refund-or-replace remedy, the beneficiary of a transferrable express warranty can sue a manufacturer for breach of an express warranty to repair defects under the California Uniform Commercial Code.” (*Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 225, *aff’d* (2024) 17 Cal.5th 189 [specifically citing, among others, Commercial Code section 2313].)

As a result, GM’s position is legally inaccurate; merely because GM was not the seller does not mean it cannot be liable under Commercial Code section 2313. Thus, the motion is DENIED as to the third cause of action.

The Fourth Cause of Action under the Magnuson-Moss Warranty Act

As for the fourth cause of action, GM merely cites to authority indicating that to the extent the plaintiff fails to state a warranty claim under state law, a claim under the Magnuson-Moss Warranty Act also fails. (Opening Brief at p. 11 [citing *Daughtery v. Am. Honda Motor Co., Inc.* (2006) 144 Cal.App.4th 824, 833].) However, as outlined above the underlying warranty claim in this case is still viable. The motion is therefore DENIED as to the fourth cause of action.

The Fifth Cause of Action under the CLRA

A CLRA claim may be maintained by “any consumer who suffers any damage as a result of the use or employment by any person of a method, act, or practice declared to be unlawful by [Civil Code] section 1770....” (Civ. Code, § 1780, subd. (a).) In turn, Civil Code section 1770 provides that it is unlawful to, among other things, represent that goods or services “have sponsorship, approval, characteristics, ingredients, uses, benefits, or quantities that they do not have or that a person has a sponsorship, approval, status, affiliation, or connection that the person does not

have;” “are of a particular standard, quality, or grade, or that goods are of a particular style or model, if they are of another;” and it is also unlawful to represent that “a transaction confers or involves rights, remedies, or obligations that it does not have or involve, or that are prohibited by law.” (Civ. Code, § 1770, subd. (a)(5), (7), and (14).)

In this case, the motion is based upon the absence of a transactional or fiduciary relationship between GM and Alarcon, but a transactional relationship is not required, as noted in the opposition. (See Opposition at pp. 10-11 [citing *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828 and *McAdams v. Monier, Inc.* (2010) 182 Cal.App.4th 174, 186—“We also pause here to note that a cause of action under the CLRA may be established independent of any contractual relationship between the parties”]; see also *Chamberlan v. Ford Motor Co.* (N.D.Cal.2005) 369 F.Supp.2d 1138, 1144 [Plaintiffs who purchased used cars have standing to bring CLRA claims, despite the fact that they never entered into a transaction directly with the defendant auto manufacturer who manufactured, sold, and distributed automobiles containing an allegedly defective engine part].)

Given the limited scope of the motion (and the legally inaccurate positions advanced by GM), the motion is DENIED.

RULING

Based on the analysis set forth above, the Court rules as follows:

- (1) Overrules Plaintiff’s evidentiary objection no. 1; sustains objection no. 2 on best evidence grounds; overrules objection no. 3, except sustains the objection on best evidence grounds as to what is stated in the View Vehicle Delivery Information; overrules objection no. 4; and overrules objection no. 5, except sustains the objection on best evidence grounds as to what is stated in the View Vehicle Summary.
- (2) Deems the motion moot as to the first and second causes of action in light of the dismissal.
- (3) Denies summary judgment.
- (4) Denies the motion as to the third cause of action under the Commercial Code.

- a. A manufacturer can still be liable, even though not the seller of a defective vehicle, for breach of warranty. (See *Rodriguez v. FCA US, LLC* (2022) 77 Cal.App.5th 209, 225, *aff'd* (2024) 17 Cal.5th 189.)
- (5) Denies the motion as to the fourth cause of action under the Magnuson-Moss Act.
 - a. The motion is based on the assertion that the predicate warranty claim is without merit (Opening Brief at p. 11), but the warranty claim is still viable as noted above.
- (6) Denies the motion as to the fifth cause of action under the CLRA.
 - a. The motion is based upon the absence of a transaction or fiduciary relationship, but no such relationship is required to support a claim under the CLRA or give rise to a duty to disclose. (See *Dhital v. Nissan North America, Inc.* (2022) 84 Cal.App.5th 828; *McAdams v. Monier, Inc.* (2010) 182 Cal.App.4th 174, 186; *Chamberlan v. Ford Motor Co.* (N.D.Cal.2005) 369 F.Supp.2d 1138, 1144.)